

OFFICE OF THE SECRETARY

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January 9, 2020

The Honorable Shari Silver
Judge of the Superior Court
County of Los Angeles
900 Third Street
San Fernando, CA 91340

Re: Kimberly Carter
CDCR No: X32287
Case No: PA054745-01
Date of Sentence: August 4, 2008

Dear Honorable Shari Silver:

The purpose of this letter is to provide the court with the authority to resentence inmate Kimberly Carter, X32287, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

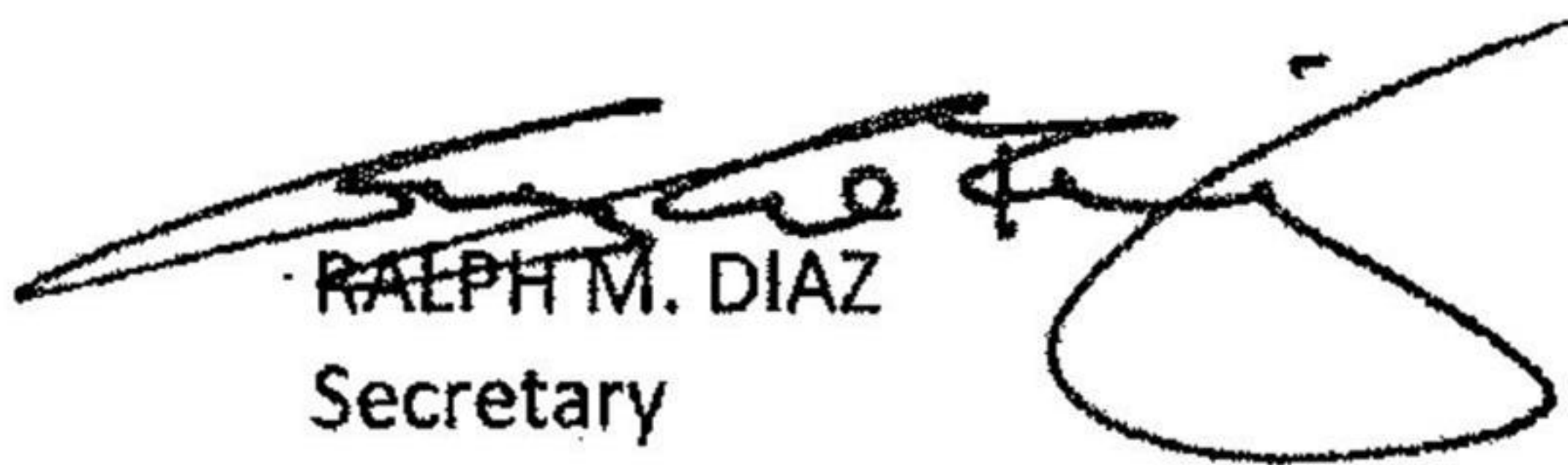
Inmate Carter is commended for remaining disciplinary free since her arrival to CDCR on August 12, 2008. Carter is currently assigned to the California Prison Industry Authority Career Technical Education-Computer Coding. Inmate Carter also participates in Voluntary e-Learning, College (onsite and correspondence) and The Urban Ministry Institute. Carter has taken advantage of various self-help and self-awareness group programs available to her and has attained a Choice Theory and Addiction Coaching certification. She has also received four Laudatory Chronos, from staff and self-help sponsors, including assisting a Correctional Officer during a medical emergency. Inmate Carter met the standards of the General Educational

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Development (GED) and received her High School Equivalency Certificate at the California Institution for Women.

Having reviewed the enclosed documentation it appears that inmate Carter's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office